

26STCV07811 26STCV07811

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Case Number: 26STCV07811 Hearing Date: September 3, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

3, 2026 TRIAL

DATE: Not set

CASE: Oscar

Chun-Fong Chan v. Harris Chun-Hoi Chan, et al.

CASE NO.: 26STCV07811

DEFENDANT

WINNIE LI-MEI CHAN'S SPECIAL MOTION TO STRIKE

PORTIONS

OF COMPLAINT PURSUANT TO CCP §425.16

MOVING

PARTY: Defendant Winnie

Li-Mei Chan

RESPONDING PARTY: Plaintiff

Oscar Chun-Fong Chan

Defendant Winnie Le-Mei Chan

("Winnie") and Yiu-Kai Chan ("Yiu-Kai") were married for nearly three decades and

had two children, plaintiff Oscar Chun-Fong Chan ("Plaintiff" or "Oscar") and defendant Harris Chun-Hoi Chan ("Harris").

In 2022, Winnie and Yiu-Kai legally separated. The separation caused a schism in the family, with Oscar siding with Yiu-Kai and Harris siding with Winnie. Yiu-Kai, who has resided in China since the separation, entrusted Oscar with the management of his assets in the United States. Due to disagreements about family assets, the

relationship between Oscar, on one hand, and Winnie and Harris on the other, deteriorated. Various physical altercations occurred between Oscar and Harris.

Winnie alleges she has lost access to much of the family home because Oscar changed the locks. In response to

Oscar's conduct, Winnie filed various legal actions, including but not limited to, unlawful detainer action (Case No. 24PDUD03549), complaint to recovery community property (Case No. 24NNCV04824), probate petition to determine claim to property (Case No. 24STPB11153), domestic violence action (Case No.

24PDR001975), and appeal of the domestic violence action (Case No. B346270). These cases were either dismissed or decided

in favor of Oscar.

In 2026, Oscar filed this action against Winnie and Harris. As relevant here, Oscar brings claims for intentional infliction of emotional distress, abuse of process, and malicious prosecution arising, in part, from the filing of the above-mentioned legal actions.

I. INTRODUCTION

On March 10, 2026, Plaintiff commenced this action against Harris and Winnie.

On June 22, 2026, Winnie (hereafter, "Defendant") filed this special motion to strike the third cause of action for intentional infliction of emotional distress, fifth cause of action for abuse of process, and seventh cause of action for malicious prosecution from the Complaint.

On July 6, 2026, Plaintiff filed an opposition.

On August 11, 2026, Defendant filed a reply.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure Section 425.16, subdivision (b), “[a] cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or California Constitution in connection with a public issue shall be subject to a special motion to strike unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b).)¿

Such a motion involves a two-step analysis, in which the court must first determine whether a movant “has made a threshold showing that the challenged cause of action is one arising from protected activity ...” (Taus v. Loftus (2007) 40 Cal.4th 683, 712, quoting Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67.) If the court so finds, it must then examine whether the respondent has demonstrated a probability of prevailing on the claim. (Taus, 40 Cal.4th at p. 712.) In determining whether the respondent has carried this burden, the trial court considers “the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc., § 425.16, subd. (b)(2); see Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291.)¿

III. DISCUSSION

Defendant moves the court for an order striking the claims for intentional infliction of emotional distress (IIED), abuse of process, and malicious prosecution. The motion is made on the grounds that (1) the Complaint arises from petitioning activity, and (2) Plaintiff cannot show minimal merit to these causes of action.¿¿

A. Prong 1: Protected Activity¿

An act in furtherance of a person's right to petition or free speech under the United States Constitution or California Constitution includes “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative,

executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).)¿

Here, the Complaint alleges the following:

25. Winnie abused litigation from 2023–2025:

Filed CHRO (Exhibit E Case No. 24PDRO01401, dismissed November 22, 2024 after denial of reconsideration and consolidation); Unlawful Detainer (Exhibit B Case No. 24PDUD03549, dismissed January 16, 2025 on judgment on pleadings, ex parte TRO denied December 27, 2024); DVRO (Exhibit E Case No. 24PDRO01975, TRO denied December 20, 2024, dismissed March 10, 2025 as a “tiff”); Unlimited Civil (Exhibit C Case No. 24NNCV04824, withdrawn September 2, 2025 after denials and quashes); Family Law Dissolution (Exhibit A Case No. 24PDFL01609, withdrawn as to Plaintiff before March 27, 2025 hearing); Ongoing DVRO appeal (Exhibit F Case No. B346270, likely to be dismissed).

37. Winnie initiated multiple

legal proceedings against Plaintiff, including but not limited to: (1) CHRO (Exhibit A Case No. 24PDRO01401), dismissed November 22, 2024; (2) Unlawful Detainer (Case No. 24PDUD03549), dismissed January 16, 2025 on judgment on the pleadings; (3) DVRO (Exhibit A Case No. 24PDRO01975), TRO denied December 20, 2024 and dismissed March 10, 2025; (4) Unlimited Civil (Exhibit C Case No. 24NNCV04824), withdrawn September 2, 2025; and (5) Family Law Dissolution proceedings naming Plaintiff, later withdrawn as to Plaintiff. Each of these proceedings was initiated by Defendant and terminated in Plaintiff’s favor.

38. Plaintiff alleges that the above-listed proceedings initiated by Defendant Winnie were brought without probable cause and for improper purposes including coercion, financial leverage, eviction pressure, and retaliation.

47.

Defendants’ outrageous conduct (defamation, assaults, harassment, extortion, process abuse) was intentional/reckless, causing severe distress.

53.

After initiating the above-referenced legal proceedings, Defendant Winnie used

those processes for purposes other than those for which they were designed.

Caused harm including legal costs, distress.

61.

Defendant Winnie initiated the CHRO, DVRO, Unlawful Detainer, Unlimited Civil, and related proceedings identified above.

62.

Each of these proceedings terminated in Plaintiff's favor, including dismissals, withdrawals, and denials of requested relief.

63.

At the time Defendant initiated those proceedings, she lacked probable cause to believe the claims were legally or factually tenable.

These foregoing allegations support the third, fifth, and seventh causes of action.

On its face, they arise, at least in part, from Defendant's petitioning activity, to wit, Defendant's act of filing at least five previous actions (CHRO, DVRO, Unlawful Detainer, Unlimited Civil) and her conduct in maintaining those actions.

Plaintiff

argues the motion should be denied because Defendant fails to show each claim within each cause of action is activity protected by the anti-SLAPP statute. It is well-established that a plaintiff cannot avoid a special motion to strike by pleading so-called "mixed causes of action" which combine allegations of activity protected by the statute with allegations of unprotected activity.

(See *Baral v. Schnitt* (2016) 1 Cal.5th 604.) However, "[i]f a cause of action contains multiple claims and a moving party fails to identify how the speech or conduct underlying some of those claims is protected activity, it will not carry its first-step burden as to those claims." (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1011.)

Despite

paper-thin analysis, Plaintiff shows that the IIED claim is a mixed cause of action based, in part, on Defendant's alleged extortion. (See Complaint, ¶ 47.) Defendant does not seek to strike the fourth cause of action for extortion nor the allegations supporting that cause of action. And glaringly, Defendant's moving papers and reply are bereft of any discussion or analysis on how the

extortion claim is constitutes protected activity. Defendant does not meet her burden as to the IIED claim.

As to the abuse of process and malicious prosecution claim, Defendant cites “Warren v. Wasserman”, “S.A. v. Maiden (2014)” and “Nicholson v. Fazeli (2003)” (see Opp., p. 3), to argue (i) an abuse of process claim cannot be based on mere filing of an action; (ii) malicious prosecution claims do not come within the purview of the anti-SLAPP statute when it involves ordinary civil claims originating in family/property disputes.

These arguments are not well taken for several reasons. First, Defendant does not provide proper case citations.[1] Presumably, Defendant refers to Warren v. Wasserman (1990) 220 Cal.App.3d 1297, S.A. v. Maiden (2014) 229 Cal.App.4th 27, and Nicholson v. Fazeli (2003) 113 Cal.App.4th 1091.

Second, and more egregiously, Defendant fails to provide any analysis or discussion to show how these cases apply.

Third, after reviewing these cases, it is clear these cases are most applicable (if at all) to the second step of the anti-SLAPP analysis. For example, Warren is not an anti-SLAPP case but was an appeal, in relevant part, to an order sustaining a demurrer to an abuse of process cause of action. There, the Warren court held that the mere filing of a complaint is not, itself, an abuse of process.

S.A. concerned a general rule precluding malicious prosecution actions that arise out of family law proceedings. The court discussed and applied that rule at the second step of the anti-SLAPP analysis.

Nicholson is further afield. In S.A., the Court of Appeal court acknowledged that Nicholson set forth an exception to the general rule precluding malicious prosecution actions arising from family law proceedings. The Nicholson case hurts rather than helps Plaintiff's position.[2] Moreover, it has nothing to do with the first

step of the anti-SLAPP inquiry.

In sum, the court finds that the causes of action for IIED, abuse of process, and malicious prosecution all concern petitioning activity. However, because Defendant targeted the entire IIED cause of action without showing that all claims alleged against Defendant within the IIED cause of action concern protected activity, the court finds Defendant does not meet her burden at the first step. The court proceeds to the second step as to the abuse of process and malicious prosecution causes of action only.

B. Prong 2: Probability of Prevailing On the Claims

The burden of showing a probability of prevailing on the claims rests with Plaintiff. “To establish a probability of prevailing, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” For purposes of this inquiry, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant; though the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant’s evidence supporting the motion defeats the plaintiff’s attempt to establish evidentiary support for the claim. In making this assessment it is the court’s responsibility...to accept as true the evidence favorable to the plaintiff [...]. The plaintiff need only establish that his or her claim has minimal merit to avoid being stricken as a SLAPP. (Soukup, supra, 39 Cal.4th at p. 291.) As to the second step inquiry, a plaintiff (or cross-complainant) seeking to demonstrate the merit of the claim “may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.” (Sweetwater Union High Sch. Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 940.)

Here, Plaintiff does not carry his burden to show the minimal merit of his abuse of process and malicious prosecution causes of action. Plaintiff’s six-page opposition is unsupported by any evidence. The special motion to strike is meritorious as to these causes of action.

IV. CONCLUSION

Based on

the foregoing, the special motion to strike is GRANTED IN PART. The fifth and seventh cause of action in the Complaint are STRICKEN.

Defendant is awarded attorney's fees and costs in the requested sum of \$5,260.

Defendant is ordered to give notice, unless waived.

Dated: September 3,
2026

Brock T. Hammond

Judge of the
Superior Court

[1] Incomplete citations to case law appear throughout Plaintiff's opposition.

[2] It is clear that Plaintiff's counsel did not read these cases. The court will inquire of counsel whether artificial intelligence was used in the creation of the poorly drafted opposition brief.